

Shiv Prasad Maurya v. State of U.P. — defective meter relegated under Clause 7.10

High Court of Judicature at Allahabad · Division Bench · 7 April 2022 · WRIT - C No. 5340 of 2022 · **Writ disposed; respondent no. 2 to decide the 1.2.2022 representation by speaking order within four weeks, with liberty to approach CGRF if the grievance remains unredressed.**

HEADNOTE

A consumer sought mandamus to replace a defective meter and ensure uninterrupted supply. The Allahabad High Court did not decide the claim on merits. Treating Clause 7.10 of the Electricity Supply Code, 2005 as the proper route, it directed respondent no. 2 to decide the pending representation dated 1 February 2022 by a speaking order within four weeks, with liberty to complain to the Consumer Grievance Redressal Forum if the officer failed to redress the grievance.

FACTUAL SUMMARY

Shiv Prasad Maurya filed a writ at the Allahabad High Court seeking a mandamus to the Executive Engineer, Purvanchal Vidyut Vitaran Nigam Limited, Phoolpur, Azamgarh, to replace a defective electricity meter and ensure uninterrupted supply to his house. The licensee's counsel submitted that such disputes lie before respondent no. 2 under Clause 7.10 of the Electricity Supply Code, 2005, with a further complaint to the Consumer Grievance Redressal Forum if the complaint is not settled. The petitioner had already made a detailed representation dated 1 February 2022.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::7.10

defective meter; Clause 7.10 / CGRF alternate remedy

HOLDING

A writ seeking mandamus to replace a defective meter and ensure uninterrupted supply is disposed of without a merits grant by directing the designated licensee officer (respondent no. 2) to decide the consumer's pending application dated 1 February 2022 by a speaking order within four weeks; if that officer fails to redress the grievance, the consumer may complain to the Consumer Grievance Redressal Forum as provided under the Electricity Supply Code, 2005 (Clause 7.10). ¶ 1

PRINCIPLE TAGS

alternate-remedy-clause-7.10 Mandamus for replacement of a defective meter and uninterrupted supply was refused on the writ; the High Court relegated the consumer to Clause 7.10 by directing respondent no. 2 to decide the pending 1.2.2022 representation by a speaking order within four weeks. ¶ 1

cgrf-7.10-alternate-remedy If respondent no. 2 fails to redress the grievance on the representation, the consumer's further remedy is a complaint before the Consumer Grievance Redressal Forum under the Electricity Supply Code, 2005. ¶ 1

consumer-grievance-redressal-forum-remedy-clause-7.10 The Court expressly reserved the petitioner's right to approach the Consumer Grievance Redressal Forum under the Electricity Code if the Clause 7.10 officer did not settle the defective-meter complaint. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE PETITIONER'S METER WAS DEFECTIVE AND WHETHER A NEW METER AND UNINTERRUPTED SUPPLY MUST BE PROVIDED

Left to respondent no. 2 on the 1.2.2022 representation, with CGRF as the further forum. ¶ 1

A jurisprudence extract prepared from the text of the judgment; not a substitute for the judgment, and to be verified against the original before use.